

ELIZABETH II



1970 CHAPTER i

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act, 1936, relating to
Glasgow Corporation. [26th February 1970]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act, 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed is hereby confirmed. of Order in
schedule.
2. This Act may be cited as the Glasgow Corporation Order Short title.
Confirmation Act 1970.

SCHEDULE

GLASGOW CORPORATION

Provisional Order to confer on the Corporation of the city of Glasgow powers to acquire lands and to construct works; to remove restrictions on the provision by the Corporation of parking places in buildings used for other purposes; to make further provision with respect to the local government of the city; and for other purposes.

Whereas the Corporation of the city of Glasgow (hereinafter referred to as "the Corporation" and "the city" respectively) are vested with the municipal government and administration of the city and are the local authority therein:

And whereas it is expedient that the Corporation should be authorised to construct a pipeline for the purpose of diverting water from a portion of the Monkland Canal and to acquire lands for such purpose:

1967 c. 76.

And whereas under section 29 (2) of the Road Traffic Regulation Act, 1967; restrictions are placed upon the provision by local authorities of parking places in buildings used also for other purposes and it is expedient, in relation to the Corporation, to remove such restrictions:

And whereas estimates have been prepared by the Corporation in respect of the following purposes and such estimates are as follows:—

For the purchase of lands and servitudes £198,000.

For the construction of the said pipeline £802,000:

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas plans and sections showing the lines and levels of the works authorised by this Order with a book of reference to such plans containing the names of the owners and lessees or reputed owners and

lessees and of the occupiers of the lands and other property required or which may be taken for the purposes or under the powers of this Order have been deposited with the sheriff-clerk of the county of Lanark and with the town clerk of the city and such plans, sections and book of reference are in this Order respectively referred to as the deposited plans, sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act, 1936:

1936 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I

PRELIMINARY

1.—(1) This Order may be cited as the Glasgow Corporation Order 1970.

Short title
and
citations.

(2) This Order and the Glasgow Corporation Acts 1855 to 1969 may be cited together as the Glasgow Corporation Acts, 1855 to 1970.

2. In this Order the following words and expressions have, unless there be something in the subject or context repugnant to such construction, the meanings hereby assigned to them, that is to say:—

Interpretation

“ city ” means the city and royal burgh of Glasgow;

“ Corporation ” means the Corporation of the city of Glasgow;

“ Order of 1935 ” means the Glasgow Corporation Sewage Order, 1935;

“ Order of 1950 ” means the Glasgow Corporation Sewage Order, 1950;

“ pipeline ” means the pipeline authorised by this Order; and

“ telegraphic line ” has the same meaning as in the Telegraph Act, 1878.

1878 c. 76.

3. The following Acts so far as they are applicable to the purposes of and are not inconsistent with this Order are hereby (except where expressly varied by this Order) incorporated with this Order:—

Incorporation
of Acts.

The Lands Clauses Acts (except section 120 of the Lands Clauses Consolidation (Scotland) Act, 1845);

1845 c. 19.

The Railways Clauses Consolidation (Scotland) Act, 1845, with respect to the temporary occupation of land near the railway during the construction thereof and in that Act where applied to this Order the expressions “ the promoters of the undertaking ” and “ the company ” mean the Corporation and the expressions “ the railway ” and “ the undertaking ” mean the pipeline;

1845 c. 33.

and this Order shall be deemed to be a special Act within the meaning of those Acts.

PART II

LANDS

Power to
acquire lands.

4. Subject to the provisions of this Order the Corporation may enter upon, take and use all or any of the lands within the limits of deviation delineated on the deposited plan and described in the deposited book of reference which they may require for the purposes of the pipeline.

Period for
compulsory
purchase.

5. The powers of the Corporation for the compulsory purchase of lands under this Order shall cease on the 31st December 1972.

Correction of
errors in
deposited plans
and book of
reference.

6.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land or in their statement or description of the ownership or occupation of any land, the Corporation after giving not less than ten days' notice to the owner, lessee and occupier of the land in question, may apply to the sheriff of Lanarkshire for the correction thereof.

(2) If on any such application it appears to the said sheriff that the misstatement or wrong description arose from mistake he shall certify the fact accordingly and shall in his certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the Office of the Clerk of the Parliaments and a copy thereof in the Private Bill Office, House of Commons, and with the sheriff clerk of the county of Lanark and with the town clerk of the city, and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Corporation to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

Application of
provisions of
Order of 1950
to acquisition
of lands.

7. The following provisions of the Order of 1950 shall extend and apply with respect to the acquisition by the Corporation of the lands which the Corporation are by this Order authorised to enter upon, take and use to the same extent as if the said provisions were with all necessary modifications re-enacted in this Order, that is to say:—

Section 7 (Servitudes, etc., by agreement);

Section 10 (As to private rights of way over lands taken compulsorily);

Section 11 (Power to enter upon property for survey and valuation):

Provided that not less than seven days' notice shall be given before the first entry under the powers of the said section and not less than twenty-four hours' in the case of any entry thereafter;

- Section 12 (Further powers of entry);
Section 13 (Power to acquire servitudes only);
Section 14 (Power to enter on lands for construction of sewers);
Section 15 (Power to purchase cellars, etc.);
Section 16 (Compensation for damage);
Section 17 (Underpinning or otherwise strengthening houses).

PART II
—cont.

8. In settling any question of disputed purchase money or compensation payable under this Order by the Corporation, the arbiter shall not award any sum of money for or in respect of any improvement, alteration or building made, or for or in respect of any interest in the lands created after the 20th November 1968, if in the opinion of such arbiter the improvement, alteration or building, or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing purchase money or compensation under this Order.

Compensation
in case of
recently altered
buildings.

PART III

CONSTRUCTION OF PIPELINE, ETC.

9. Subject to the provisions of this Order the Corporation may construct and maintain in the lines and according to the levels shown on the deposited plans and sections the pipeline hereinafter in this section described, together with all necessary and proper appliances, works and conveniences incidental or subsidiary thereto, that is to say:—

A line or lines of pipes commencing in the city and parish of Glasgow at a point on the existing Monkland Canal 200 feet west of the existing valve house at Blackhill Locks in the city and terminating in the city and in the parish of Old Monkland at a point in the enclosure numbered 5108 on the 1/2500 Ordnance Survey map of Glasgow N.S. 6965 (Edition of 1960) on the south bank of the existing Monkland Canal 1600 feet due east from Netherhouse Road:

Provided that any electrical apparatus forming part of the pipeline shall be so constructed and so maintained and used as to prevent interference with any telegraphic line belonging to or used by the Post Office or with communication by means of any such telegraphic line.

10. In the construction of the pipeline the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plan and vertically from the levels shown on the deposited section to any extent not exceeding 3 feet upwards and to any extent downwards.

Power to
deviate.

11.—(1) The following provisions of the Order of 1935 shall with all necessary modifications extend and apply to and in respect of the pipeline in the same way and manner and to the same extent as they extend and apply to and in respect of the sewers authorised by the Order of 1935 and the Order of 1935 shall be read and construed accordingly:—

Certain
provisions of
Order of 1935
to apply to
pipeline.

The provisions of the Order of 1935 hereinbefore referred to are—

- Section 15 (Hours between which works not to be carried on);
Section 18 (Power to alter roads &c. temporarily).

PART III
—cont.

(2) The exercise by the Corporation of the powers conferred by subsection (1) of section 18 of the Order of 1935 (as applied by this Order) in relation to any of the streets, highways or other places referred to in that subsection shall not affect the powers of the Post Office under the Telegraph Acts, 1863 to 1916, to maintain, inspect, repair, renew or remove telegraphic lines or to open or break up any of the said streets, highways or other places for any of those purposes.

For protection
of electricity
and gas
boards.

12.—(1) Section 23 (For protection of South-West Scotland Electricity Board) of the Order of 1950 shall for the protection of the South of Scotland Electricity Board extend and apply to and in respect of the pipeline in the same way and to the same effect as if the pipeline had been included among the works authorised by the Order of 1950.

(2) For the protection of the Scottish Gas Board (hereinafter referred to as “the gas board”) the provisions of the said section 23 of the Order of 1950 as extended and applied by the foregoing subsection shall extend and apply to and in respect of the gas board and the pipeline respectively in the same way and to the same effect as if—

- (a) references in the said section to “the board” included references to the gas board;
- (b) references in the said section to “apparatus” included references to apparatus belonging to or maintained by the gas board;
- (c) references in the said section to the supply of electricity included references to the supply of gas; and
- (d) subsection (10) of the said section were omitted therefrom.

For protection
of British
Waterways
Board.

13.—(1) The Corporation shall, not less than twenty-eight days before commencing the construction of any work to which this section applies, furnish to the British Waterways Board (hereinafter called “the board”) proper and sufficient plans and specifications therefor for the reasonable approval of the board and shall not commence the said work until the plans and specifications therefor have been approved in writing by the board or settled by arbitration:

Provided that, if within twenty-eight days after such plans and specifications have been furnished to the board they have not intimated their disapproval thereof and the grounds of their disapproval, they shall be deemed to have approved the same.

(2) This section applies to any work which the Corporation are authorised to construct under this Order which might obstruct, interrupt or restrict the free flow of water to those consumers being supplied by the board at the commencement of this Order with water from the Monkland Canal.

(3) Any question or difference between the Corporation and the board arising under this section shall, at the instance of either party, be referred to and determined by an arbiter to be appointed, failing agreement, by the Sheriff of Lanarkshire.

PART IV

MISCELLANEOUS AND GENERAL

14. Section 29 (2) of the Road Traffic Regulation Act, 1967 (which restricts the provision by a local authority of parking places in buildings used for other purposes), shall not apply to parking places provided by the Corporation in buildings within the city.

Removal of restriction on use of buildings containing car parks.
1967 c. 76.

15. The provisions of the Town and Country Planning (Scotland) Acts, 1947 to 1969, and any restrictions thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be regulated by or under this Order.

Saving for town and country planning.

16. Section 103 (Duties of Custodier) of the Glasgow Police Act, 1866, as amended by section 12 of the Glasgow Corporation (Water &c.) Order, 1953, shall be read and have effect as if in place of the words " six months " there were substituted the words " three months ".

Amendment of section 103 of Glasgow Police Act, 1866.

1866 c. cclxxiii.

17. Nothing in this Order shall affect prejudicially any estate, right, power, privilege or exemption of the Crown or shall subject to the provisions of this Order any lands, buildings or works vested in or occupied by the Crown or any department of Her Majesty's Government, except to such extent as Her Majesty or such department may voluntarily agree, and in particular nothing herein contained shall authorise the Corporation to take, use or in any manner interfere with any portion of the shore or bed of the sea, or any river, channel, creek, bay or estuary or any land, heritages, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of the said commissioners on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.

18. The costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation.

Costs of Order.

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CHAPTER i

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*Glasgow Corporation Order Confirmation
Act 1970*

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